

Court No. - 37

Case :- WRIT - C No. - 36061 of 2012

Petitioner :- Ismail

Respondent :- Paschimanchal Vidyut Nigam Ltd. And Others

Petitioner Counsel :- T.A. Khan

Respondent Counsel :- C.S.C.,Nripendra Mishra

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

By this writ petition the petitioner has challenged the demand notice issued by the Executive Engineer.

Put up this writ petition before a Bench hearing Corporation matters on 1.8.2012 as fresh.

Order Date :- 26.7.2012

SKM

Court No. - 35

Case :- WRIT - C No. - 36061 of 2012

Petitioner :- Ismail

Respondent :- Paschimanchal Vidyut Nigam Ltd. And Others

Petitioner Counsel :- T.A. Khan

Respondent Counsel :- C.S.C., Nripendra Mishra

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Het Singh Yadav, J.

On prayer made by Shri Nripendra Mishra, learned counsel for the respondents no. 1 and 2, the case is directed to be put up as fresh on 10.9.2012 so as to enable him to obtain instructions in the matter.

Order Date :- 28.8.2012

RU

Court No. - 35

Case :- WRIT - C No. - 36061 of 2012

Petitioner :- Ismail

Respondent :- Paschimanchal Vidyut Nigam Ltd. And Others

Petitioner Counsel :- T.A. Khan

Respondent Counsel :- C.S.C., Nripendra Mishra

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Het Singh Yadav, J.

It is submitted by Shri T.A. Khan, learned counsel for the petitioner that on the basis of checking allegedly made on 28.11.2011, Provisional Assessment dated 29.11.2011 was made in respect of the petitioner for an amount of Rs. 2,52,567/-. The petitioner submitted the Objections dated 19.12.2011 against the Provisional Assessment. In the meantime, the respondent no. 2 issued Demand Notice dated 16.12.2011 requiring the petitioner to pay the amount of Rs. 2,52,567/- + Rs. 25/- in respect of Notice expenses. The said amount of Rs. 2,52,567/- was evidently the amount in respect of the Provisional Assessment dated 29.11.2011.

It is submitted that even before making any Final Assessment, the respondent no.2 issued the Demand Notice dated 16.12.2011 which was illegal. On the basis of the said Demand Notice, the respondents have issued the Recovery Certificate dated 9.2.2012.

Shri Nripendra Mishra, learned counsel for the respondent nos. 1 and 2, on the basis of instructions received by him, submits that the Objections dated 19.12.2011 submitted by the petitioner were decided on 29.12.2011 and the Final Assessment for an amount of Rs. 2,52,567/- was made. However, there is no explanation on behalf of the respondent nos. 1 and 2 as to how the Demand Notice was issued on 16.12.2011.

Shri T.A. Khan, learned counsel for the petitioner submits that the Final Assessment allegedly made on 29.12.2011, was never served on the petitioner. He further submits that before making the Final Assessment, no date for hearing was fixed nor was the petitioner given any opportunity of hearing, which is contrary to the relevant provisions of the Electricity Act, 2003 and the U.P. Electricity Supply Code 2005.

Shri T.A. Khan, learned counsel for the petitioner has placed reliance on the decision of a Division Bench of this Court in ***Dr. Munni Lal Vs. State of U.P. and others, 2011(6)ADJ 650 (DB)***.

The matter requires consideration.

Admit.

Issue notice.

Notices on behalf of respondent no. 1 and 2 have been accepted by Shri Nripendra Mishra, learned counsel for the said respondents.

Notice on behalf of respondent no. 3 has been accepted by learned Standing Counsel.

Therefore, no notice need to be sent to the respondents.

Learned counsel for the respondents may file Counter Affidavit within six weeks. The petitioner may file Rejoinder affidavit by the next date fixed in the matter.

List on 26.11.2012.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that the Recovery Proceedings pursuant to the Recovery Certificate dated 9.2.2012 (Annexure No. 5 to the Writ Petition) will remain stayed till the next date fixed in the matter provided within six weeks from today, the petitioner deposits an amount of Rs. 1.00 lac with the respondent no.2.

The amount so deposited by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

In case the petitioner fails to make the deposit of the aforesaid amount within the time granted by this Court, this interim order will stand automatically vacated.

The case is released from assignment/nomination to this Bench.

Let it be listed before the appropriate Bench.

Order Date :- 10.9.2012

R

Court No. - 3

Case :- WRIT - C No. - 36061 of 2012

Petitioner :- Ismail

Respondent :- Paschimanchal Vidyut Nigam Ltd. And Others

Counsel for Petitioner :- T.A. Khan

Counsel for Respondent :- C.S.C.,Nripendra Mishra

Hon'ble Pankaj Kumar Jaiswal,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

Case called out. None appears on behalf of the petitioner even in the revised list.

Sri Raghvendra Dwivedi, learned Standing Counsel for the State-respondents is present.

The writ petition is dismissed for non-prosecution.

Interim order, if any, stands vacated.

Order Date :- 13.3.2019

Imroz

[Dr. Y. K. Srivastava, J.] [Pankaj Kumar Jaiswal, J.]